

Decision on how the European Commission carried out a targeted data collection on the impact of the wolf population in the European Union (case 1758/2024/FA)

Decision

Case 1758/2024/FA - Opened on 28/10/2024 - Decision on 01/09/2025 - Institution concerned European Commission (Dealt with by a Court) |

Dear Ms X,

You submitted a complaint to my Office, on behalf of ClientEarth, against the European Commission concerning the above issue. On 16 July 2025, I informed you of the Commission's position on the overlap between Court case T-634/24 [1] and the above mentioned inquiry, which would require me as Ombudsman to close the inquiry into your complaint on this basis.

In your comments of 30 July 2025, you acknowledge the overlap between the Court case and this inquiry. However, you raise concerns about the possibility to turn again to my Office in case the General Court dismisses the case as inadmissible. You asked my Office to “ *suspend rather than close complaint 1758/2024/FA pending the determination of admissibility of the application in case T-634/24* ”.

While I understand your concerns, there is no legal basis for the Ombudsman to suspend an inquiry whenever the same issue(s) are brought before a court. The institution of the European Ombudsman was designed to complement the EU judicial system, and not to duplicate it. Therefore, the Ombudsman cannot review issues that have been already examined by courts as this will interfere with the attribution of powers under EU law (Article 5 TEU and Article 228(1) TFEU). For this reason, the Ombudsman Statute and Implementing provisions clearly provide that, if a matter under investigation has become the subject of legal proceedings, the Ombudsman *shall* close the inquiry. [2] This means that I cannot continue dealing with your complaint. [3]

Although I appreciate this may not be your desired outcome, based on the above-mentioned considerations, I am sure you will understand that I can act only in line with the legislation governing my Office.

Thank you for having contacted my Office.



Yours sincerely,

Teresa Anjinho European Ombudsman

Strasbourg, 01/09/2025

[1] Available here : <https://eur-lex.europa.eu/eli/C/2025/922/oj/eng> [Link]

[2] Article 2(9) of the Statute of the European Ombudsman
<https://www.ombudsman.europa.eu/en/legal-basis/statute/en> [Link]; Article 6(5) of the Decision
of the European Ombudsman adopting Implementing Provisions:
<https://www.ombudsman.europa.eu/en/legal-basis/implementing-provisions/en> [Link].

[3] Full information on the procedure and rights pertaining to complaints can be found at ;
<https://www.ombudsman.europa.eu/en/document/70707> [Link]